

24STCV26733 24STCV26733

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-06-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C311%2C06%2F24%2F2026

Source SHA-256: dab84a420cc622239e052bfd3a8ce6a64ceab27f9f9ded1c9231106aaecdb214

Case Number: 24STCV26733 Hearing Date: June 24, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV26733

CORA

MAHUKA vs KAREN RUTH BASS, MAYOR OF LOS ANGELES, CITY OF LOS ANGELES AND LOS

ANGELES COUNTY TO INCLUDE LONG BEACH, et al.

June

24, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEMURRER TO SECOND AMENDED COMPLAINT BY DEFENDANT KAREN RUTH BASS.

RULING:

The Demurrer is sustained,

with 20 days' leave to amend.

I.

BACKGROUND

On October 14, 2024, CORA

MAHUKA (Plaintiff), a self-represented litigant, filed a Complaint against

KAREN RUTH BASS, MAYOR OF LOS ANGELES; CITY OF LOS ANGELES; and LOS ANGELES

COUNTY TO INCLUDE LONG BEACH (Defendants), alleging an "ACTION UNDER 42 USC 1983

FOR VIOLATION OF PLAINTIFF'S CIVIL RIGHT BY DEFENDANTS OF INSIDE SAFE PROGRAM;

INCORPORATED WITH ADA VIOLATIONS OF TITLE II OF THE ADA SECTION 12131."

On September 4, 2025,

Plaintiff filed a First Amended Complaint (FAC), for " VIOLATION OF CIVIL

RIGHTS (42 USC 1983) AND ADA VIOLATIONS" against:

.

CITY OF LOS ANGELES

.

COUNTY OF LOS ANGELES

.

ANGELA DOE

.

DESIREE PEREZ

.

ESTAFANY PLETIEZ

.

EVANGELINA NOLBERT

.

KATY HAMMER

.

LETICIA SANDERS

.

MARIANA MENDOZA

.

MICHAEL DOE

.

MICHELLE DOE

.

RACHEL PALMER

.

YADIRA HERNANDEZ.

On April 29, 2026,

Plaintiff filed the Second Amended Complaint (SAC), listing the following Causes

of Action:

1.

VIOLATION OF TITLE II OF THE AMERICANS WITH DISABILITIES ACT, 42 U.S.C. § 12132

2.

VIOLATION OF CIVIL RIGHTS UNDER 42 U.S.C. § 1983.

Plaintiff alleges that,

as a disabled person and a prior rape victim, she experienced retaliation,

Civil Rights violations, and violations of the Americans with Disabilities Act (ADA),

while participating in the Mayor's INSIDE SAFE PROGRAM, improperly providing unworkable

housing assistance involving unsafe and uninhabitable housing-related services,

caused by, "Defendant City of Los Angeles, Defendant Karen Ruth Bass, Defendant

County of Los Angeles, and DOE Defendants, to the extent they operated,

supervised, funded, controlled, staffed, or administered the relevant programs,

services, and facilities, maintained policies, customs, practices, failures of

training, failures of supervision, and failures of safeguards....” (SAC, ¶ 86.)

On May 29, 2026, KAREN

RUTH BASS (Defendant) filed the Demurrer to the SAC, on grounds including that Defendant

is not a suable public entity as to the Causes of Action for ADA and Civil

Rights violations.

Plaintiff filed an

Opposition advocating the pleading's sufficiency, and alternatively requesting

leave to amend to add clarifications and details stated in the Opposition,

about bases for naming Defendant.

II.

LEGAL STANDARD

Demurrers are to be

sustained where a pleading fails to plead adequately any essential element of

the cause of action. (*Cantu v. Resolution*

Trust Corp. (1992) 4 Cal.App.4th 857, 879-880.)

The burden is on the

complainant to show the court that a pleading can be amended successfully, in

order to obtain an order allowing leave to amend. (*McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72,

78.) A mere assertion of an abstract right to amend would not satisfy the

burden of proving that there is a reasonable possibility of amendment, but

instead complainants must set forth applicable law and factual allegations

sufficiently stating all required elements of the cause of action. (Rosen v. St. Joseph Hospital of Orange

County (2011) 193 Cal.App.4th 453, 458.) Complainants have the burden to

demonstrate how complaints can be amended, in order to obtain leave to amend,

and it is not up to the judge to figure it out, but that showing may be made in

the first instance to the appellate court. (Oglio

Entertainment Group, Inc. v. Hartford Cas. Ins. Co. (2011) 200 Cal.App.4th

573, 585.) In order to obtain leave to amend, complainants must state how the

allegations would be amended in order to state a cause of action. (Drum v. San Fernando Valley Bar Ass'n

(2010) 182 Cal.App.4th 247, 253.)

III.

ANALYSIS

Defendant's arguments

include the following:

.

The Claim labels do not name Defendant.

.

The SAC alleges other individuals

experiencing the same conditions, indicating no discrimination targeted against

Plaintiff.

.

Defendant could not be liable individually,

as not being a public entity.

.

The SAC is devoid of facts showing what Defendant

individually did and how that was any violation.

Under 42 U.S.C. section

12132, the elements needing addressed, for an Americans with Disabilities (ADA)

Cause of Action, are the following:

Plaintiff

is an individual who has a disability;

is

qualified to participate in or receive public entity benefits, services,

programs, or activities;

was

excluded from participation, denied, or otherwise discriminated against by

public entity; and

exclusion,

denial, or discrimination, was by reason of plaintiff's disability.

(In re M.S. (2009))

174 Cal.App.4th 1241, 1252. See also Gregory v. Cott (2014) 59 Cal.4th

996, 1014, fn. 14 [under Title II of the Americans with Disabilities Act (42

U.S.C. § 12132), “ ‘[s]tates are required to provide community-based treatment

for persons with mental disabilities when the State's treatment professionals determine

that such placement is appropriate, the affected persons do not oppose such

treatment, and the placement can be reasonably accommodated, taking into

account the resources available to the State and the needs of others with

mental disabilities.’ ”]; Henrietta D. v. Bloomberg (2d Cir. 2003) 331

F.3d 261, 291 [“a state official sued in his or her official capacity is a ‘public

entity’ subject to liability under the ADA”]; Alston v. D.C. (D.D.C.

2008) 561 F. Supp. 2d 29, 37 [“Title II of the ADA, by its terms,

only prohibits discrimination by ‘public entities.’ 42 U.S.C. § 12132. The

statute is clear that individuals are not public entities. Id. at § 12131(1).

Therefore, individuals, acting in their personal capacities, cannot violate

Title II.”]. Cf. Reno v. Baird (1998) 18 Cal.4th 640, 648 [under Title

VII, “individuals can be sued in their official or representative capacity,

they may not be sued in their individual capacity and have no personal

liability”].)

Next, the elements that Plaintiff

needs to address, for the Section 1983 Claim, are these:

The conduct was committed by a

person acting under color of state law; and

it deprived a person of rights,

privileges, or immunities secured by the Constitution or other law of the

United States.

(Tichinin v. City of Morgan Hill (2009) 177

Cal.App.4th 1049, 1062; Vergos v. McNeal

(2007) 146 Cal.App.4th 1387, 1402. See also

Holland v. Morse Diesel Int'l, Inc. (2001) 86 Cal.App.4th 1443, 1449–50 [“42

United States Code section 1981(a) ...provides: ‘All persons within the

jurisdiction of the United States shall have the same right in every State and

Territory to make and enforce contracts, to sue, be parties, give evidence, and

to the full and equal benefit of all laws and proceedings for the security of

persons and property as is enjoyed by white citizens, and shall be subject to

like punishment, pains, penalties, taxes, licenses, and exactions of every

kind, and to no other.”]; Galland

v. City of Clovis (2001) 24 Cal.4th 1003, 1038 [“Only those government

actions that amount to a deliberate flouting of the law qualify for relief

under section 1983 ..., not ‘inadvertent errors, honest mistakes, agency

confusion, [or] negligence.”]; Jones

& Matson v. Hall (2007) 155 Cal.App.4th 1596, 1605 ["causal connection

can be established by direct personal participation in the deprivation or by

setting in motion a series of acts by others which the actor knows or

reasonably should know would cause others to inflict the constitutional

injury."]; City and County of San

Francisco v. Ballard (2006) 136 Cal.App.4th 381, 406-407 [governmental

liability under section 1983 is confined to deliberate actions done pursuant to

official municipal policies causing deprivations of federally protected rights

of life, liberty or property]; Harman v.

City & Cnty. of San Francisco (2006) 136 Cal.App.4th 1279, 1296

[according to the Monell decision addressing 42 USC section 1983: "Congress

did not intend municipalities to be held liable unless action pursuant to

official municipal policy of some nature caused a constitutional tort."]; Dwight R. v. Christy B. (2013) 212

Cal.App.4th 697, 714 ["Section 1983 applies to persons acting 'under color of'

state law,... and normally does not apply to private actors,... 'A private

individual may be liable under section 1983 if she conspired or entered joint

action with a state actor...."]; Mackey v.

Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 655

[persons, but not arms of the state, may be sued under 42 USC section 1983]; Grassilli v. Barr (2006) 142 Cal.App.4th

1260, 1279–80 [superiors' vicarious

liability under section 1983 requires proving (1) superior had actual or constructive knowledge of the wrongful conduct; (2) response was so inadequate to show deliberate indifference to, or tacit authorization of, the offensive practices; and (3) an affirmative causal link between superior's inaction and injuries]; *Brenner v. City of Del Mar* (1998) 69 Cal.App.4th 166, 180 ["A plaintiff seeking recovery under section 1983 must plead more than constitutional "buzzwords" to survive demurrer.... The plaintiff must allege specific and nonconclusory facts showing the defendant's acts deprived him of a right, privilege or immunity secured by the federal Constitution or federal laws."]; *Bach v. County of Butte* (1983) 147 Cal.App.3d 554, 564 ["Some particularized facts demonstrating a constitutional deprivation are needed to sustain a cause of action under the Civil Rights Act."].)

And, as a matter of pleading procedure, the failure to identify claims and parties by labeling causes of action may render a complaint uncertain, except where the complaint contains allegations sufficiently apprising defendants of the issues, in which case a demurrer should be overruled. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.) The ground of uncertainty relates to alleged facts, and does not lie as to the label, legal theory or effect of a cause of action. (*County of Santa Clara v. Hayes Co.* (1954) 43 Cal.2d 615, 619-620.) Given the SAC's incorporation by

reference and the above-referenced law, the Court will proceed to address the merits of the Demurrer.

Here,

Plaintiff's Claim headings do not include Defendant in the listing of

Defendants' identities, although that is required because Defendant is not

adequately apprised of the bases for the lawsuit., Defendant uncertainly is

incorporated by reference into the body of each Cause of Action, which would

include paragraph 6, stating: Plaintiff names Karen Ruth Bass based on

Plaintiff's allegation that she initiated, promoted, and oversaw the Inside

Safe Program, under which Plaintiff was placed into and moved through the

housing and support chain described in this Complaint."

Furthermore,

Plaintiff's SAC alleges no conduct or policy that Defendant as an individual or

officially did or omitted, in violation of those claims, but instead bases the

allegations generally upon Defendant's acting officially as a Mayor in relation

to a housing program and conduct of other individuals who Plaintiff

encountered. At best, the SAC ambiguously speculates that each Defendant may

have participated in unknown ways. (See SAC, ¶ 86 ("Defendants, to the

extent they operated, supervised, funded, controlled, staffed, or

administered the relevant programs, services, and facilities, maintained

policies, customs, practices, failures of training, failures of supervision,

and failures of safeguards....").) (Underscoring added.)

Further,

the SAC is unclear whether it improperly includes Defendant as an individual,

or only properly in the Mayor's official capacity.

Nevertheless,

the Opposition adds the clarification—"Plaintiff also clarifies that the ADA

claim is not asserted against Mayor Bass personally as an individual." And

Plaintiff impressively has proposed a potentially successful amendment to

allege Defendant's factual participation, as only an official, in relation to

claim elements. (Opposition, pp. 2, 8-9, 11-14.)

IV.

CONCLUSION

Accordingly, the Court sustains

the Demurrer to the Second Amended Complaint, with leave to amend.